

COLLECTIVE LABOR AGREEMENT

OCTOBER 1, 2022 THROUGH SEPTEMBER 30, 2026



CITY OF BOISE



IAFF LOCAL 149

COLLECTIVE LABOR AGREEMENT
BETWEEN CITY OF BOISE AND INTERNATIONAL FIRE FIGHTERS LOCAL 149
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COLLECTIVE LABOR AGREEMENT

AGREEMENT made this 18th day of April 2023 between the CITY OF BOISE, a municipal corporation of Idaho, hereinafter referred to as BOISE CITY, and the INTERNATIONAL ASSOCIATION OF FIRE FIGHTERS LOCAL 149, hereinafter referred to as the UNION.

W I T N E S S E T H:

ARTICLE 1. PREAMBLE

WHEREAS, pursuant to the provisions of Idaho Code, Chapter 18, Title 44 (Session laws 1970, Chapter 138 as amended), BOISE CITY and the UNION have reached agreement with respect to wages, rates of pay, working conditions and all other terms and conditions of employment pertaining to the members employed by BOISE CITY in various capacities.

WHEREAS, BOISE CITY and the UNION agree that the establishment and maintenance of trust, harmony, efficiency, and job effectiveness are in the best interests of BOISE CITY, the UNION and the public. Furthermore, it is agreed by both BOISE CITY and the UNION that the successful resolution of problems is an important element of their working relationship, and BOISE CITY and the UNION commit themselves to the equitable and peaceful adjustment of any differences which may arise.

WHEREAS, BOISE CITY agrees to recognize the Department's Fire Fighters as professional Fire Fighters dedicated to serving the citizens of Boise City; the UNION agrees to support BOISE CITY in improving the safety of citizens and Fire Fighters to the fullest extent possible.

WHEREAS, representatives of the UNION timely presented to BOISE CITY written notice for a meeting for collective bargaining purposes pursuant to the provisions of said Chapter 18, Title 44, Idaho Code (Session Laws 1970, Chapter 138); and

WHEREAS, representatives of BOISE CITY and the UNION have met and conferred in good faith regarding wages, rates of pay, working conditions and all terms and conditions of employment, and, as a result thereof, BOISE CITY and the UNION desire to enter into a Collective Labor Agreement resolving such matters in favor of the UNION and BOISE CITY for the period of October 1, 2022 through September 30, 2026.

NOW, THEREFORE, in consideration of the foregoing recitals and the covenants and agreements hereinafter provided, BOISE CITY and the UNION mutually agree as follows:

ARTICLE 2. GENERAL PROVISIONS

Section A. Term.

This Collective Labor Agreement, hereinafter referred to and called AGREEMENT, shall become effective October 1, 2022 and shall remain in full force and effect through September 30, 2026.

In agreeing to this forty-eight (48) month AGREEMENT, the parties agree that the statutory notice provisions of Idaho Code §44-1804 and §44-1808 are separate and distinct and further, that for purposes of preparation for the negotiation of a successor AGREEMENT, the UNION may give timely notice of request for bargaining on matters requiring appropriation pursuant to Idaho Code §44-1808, and may thereafter give separate timely notice of request for a meeting for collective bargaining purposes at least one hundred and fifty (150) days prior to the expiration of this AGREEMENT.

BOISE CITY agrees to the following conditions with respect to the negotiation of a successor labor agreement:

1. That the amount specifically designated for the Fire Department of BOISE CITY in the BOISE CITY's approved Budget for the 2026 fiscal year shall not alone be a limiting consideration in satisfying the fiscal needs of a successor agreement addressing the remainder of that fiscal year after the expiration of this AGREEMENT on September 30, 2026; and
2. That serious, good faith consideration will be given to the application of all surplus funds, undesignated funds, reserves and fund equity in satisfying the fiscal needs of a successor agreement addressing all fiscal periods covered by the successor agreement.

Section B. Scope.

BOISE CITY hereby recognizes the UNION as the sole and exclusive bargaining agent for all Fire Fighters in the Fire Department of BOISE CITY pursuant to Chapter 18, Title 44, Idaho Code. For purposes of this AGREEMENT, the Fire Fighters in the Fire

Department of BOISE CITY shall mean all the paid members whose positions, because of the duties required, are defined as Fire Fighter positions in Chapter 18, Title 44, Idaho Code, and shall specifically exclude the Fire Chief, Assistant Chiefs, Division Chiefs, Communications Manager, Administrative Supervisor, and the administrative support staff. In the event a new position not referenced above is created within the Fire Department of BOISE CITY during the term of this AGREEMENT, representatives of BOISE CITY and the UNION shall immediately meet and discuss whether the new position is appropriately within or without the bargaining unit represented by the UNION. If the parties are unable to reach agreement as to whether the new position falls within the definition of "Fire Fighter", as defined in Idaho Code §44-1801(a), the dispute shall be submitted by the parties to arbitration for unit clarification purposes pursuant to the provisions of Article 6. SPECIAL PROVISIONS; Section A. Grievances; Subsection 3. Grievance Procedure.

The UNION shall allow one (1) part-time position within the Logistics Division to conduct Self Contained Breathing Apparatus (SCBA) maintenance and repair work only. The SCBA Technician position falls within the definition of "Fire Fighter" as defined in Idaho Code §44-1801(a). The part-time SCBA Technician shall be a retired BOISE CITY Fire Fighter and will only perform work related to the maintenance and repair of SCBA.

Section C. Definitions.

For the purposes of this AGREEMENT, as used herein:

Base Pay (Bi-Weekly) - As set forth on Appendix A. PAY SCHEDULES; Schedule 1. Base Pay (Bi-Weekly).

Base Rate – An hourly rate of the bi-weekly equivalent as set forth on Appendix A. PAY SCHEDULES; Schedule 1. Base Pay (Bi-Weekly).

Call Back - Earned when a member is called to return to duty as a result of an emergency situation.

Compensatory Time - Time which is earned and accrued in lieu of monetary payment for overtime worked, and which may be used or sold in accordance with the provisions of this AGREEMENT. This includes both the pay categories known as compensatory time and constant staffing.

Composite Pay - The bi-weekly pay that includes Base Rate plus the Longevity Rate multiplied by one hundred eight and sixty-two one hundredths (108.62) hours per bi-week for Shift Duty Members or multiplied by eighty (80) hours per bi-week for Forty (40) Hour Workweek Members plus all Remunerations.

Composite Rate - Hourly rate that includes Base Rate plus the Longevity Rate plus all Remunerations.

Fire Chief - The Fire Chief of the Fire Department of BOISE CITY or designee.

FLSA Overtime Rate (calculation method) - Hourly rate for Shift Duty Members that includes: Base Rate; Longevity Rate; and all Remunerations; multiplied by one hundred ninety-two (192) hours plus call back standby pay plus working out of class pay which shall be divided by one hundred ninety-two (192) hours and multiplied by one-half (.5).

Forty (40) Hour Workweek Members (Day Crew) - Members assigned to work a forty (40) hour workweek schedule in any of the following divisions: Fire Prevention, Logistics, or Training.

Longevity Rate - Fifty-five hundredths percent (.55%) multiplied by that member's years of service with the Fire Department of BOISE CITY multiplied by that member's current Base Rate. Years of service includes continuous service with no breaks in service due to separation or a subsequent rehire. Military leave is not considered a break in service and thus is part of continuous service.

Members - All Fire Fighters in the Fire Department of BOISE CITY, as the term Fire Fighter is defined in Chapter 18, Title 44 of the Idaho Code, and as further defined in Article 2. GENERAL PROVISIONS; Section B. Scope.

Overtime - All work in excess of the regularly scheduled hours of work with the exception of pay for call back standby.

Overtime Rate - Equal to one and one-half (1.5) multiplied by the Composite Rate.

Remunerations - Includes Career Development Program Rate, Educational Incentive Program Pay Rate, Specialty Team Pay Rate, Specialty Team Longevity Pay Rate, and Paramedic-Fire Fighter Certification Rate.

Shift - The 24-hour period of time that Shift Duty Members are scheduled to be on duty.

Shift Duty Members - Members ordinarily working fifty-four and thirty-one one hundredths (54.31) average hours per week or one hundred eight and sixty-two one

hundredths (108.62) average hours per bi-week, such hours per week/bi-week to be performed and executed through the existing three-platoon system.

Sick Leave - Leave for reasons of (1) personal illness, (2) personal injury not arising in the course of employment, (3) quarantine, (4) illness of the member's family necessitating the member's absence from duty, or (5) doctor appointments.

Standard Rate - Hourly rate to include the Base Rate plus the Longevity Rate.

Tour - The combination of two (2) consecutive shifts which makes up a Shift Duty Member's schedule of 48 hours on duty – 96 hours off duty.

Vacancy - An open position resulting from voluntary or involuntary termination, retirement, death, promotion or demotion. Vacancies do not result from a reduction in force, temporary assignment or special detail. When a temporary assignment or special detail is made, BOISE CITY shall notify the UNION in writing.

Section D. Discrimination.

1. BOISE CITY and the UNION shall not discriminate against any member with respect to a member's compensation, terms, conditions or privileges of employment because of:
 - a. Activity on behalf of, or membership in, the UNION; or,
 - b. BOISE CITY is committed to providing equal employment opportunity for all persons without regard to race, color, religion, gender, age, national origin, sexual orientation, gender identity, disability, veteran status, or any other applicable legally protected status for which reasonable accommodations can be made; or,
 - c. Other factors which do not constitute bonafide occupational requirements.
It is the exclusive responsibility of BOISE CITY to determine bonafide occupational requirements.
2. Grievance settlements relative to this provision, or arbitration awards if any, shall be reduced by any amounts obtained by the affected member as a result of any administrative action before a Local, State or Federal Agency concerning the same complaint, but only to the extent of cumulative damages pertaining to the same types of relief obtained.

Section E. Residency.

Residency within the corporate limits of Boise City shall not be a condition of employment or continued employment. However, if non-residency creates circumstances affecting the operating efficiency or response capabilities of the Fire Department of BOISE CITY, residency shall be a subject of renegotiation between the UNION and BOISE CITY. The domiciling of Fire Department of BOISE CITY vehicles shall be within a 21-mile distance from BOISE CITY limits for all vehicle assignments.

Section F. Union Business.

Up to three (3) members of the UNION's Contract Negotiation Committee shall be allowed time off for all meetings with BOISE CITY for contract negotiations which shall be mutually set by BOISE CITY and the UNION. In addition, the UNION may bring other requests for time off for UNION conventions, seminars, and workshops and other meetings of a similar nature to the attention of the Fire Chief. Where it is demonstrated that attendance at such meetings will benefit BOISE CITY, the Fire Chief may, in his discretion, grant time off with Composite Pay. BOISE CITY agrees to grant time off to UNION officials when necessary to conduct UNION business with Fire Department of BOISE CITY management and BOISE CITY officials.

Members of the UNION involved in lobbying during Legislative sessions shall be granted reasonable time off for such activity that is beneficial to BOISE CITY and the fire service whenever staffing is such that there will be no additional cost to BOISE CITY.

Section G. Semi-Monthly Service Charge.

The UNION shall request present or future bargaining unit members to pay to the UNION a semi-monthly service charge. For UNION members that service charge will constitute that member's UNION dues, fees and assessments. The UNION shall request each bargaining unit member to sign and file with BOISE CITY a written authorization approving this deduction, and remittance, from wages.

BOISE CITY agrees to deduct authorized semi-monthly service charges in amounts specified by the authorized officer of the UNION, from the pay of bargaining unit members upon receipt of the written authorization from the employee. BOISE CITY further agrees to transmit those amounts monthly to the UNION on or about the first day of the month following such semi-monthly service charges are withheld from the wage of

each member. The authorization from the member shall remain in effect until the member gives written notice to BOISE CITY of revocation of the employee's authorization.

The UNION agrees to give BOISE CITY a minimum of thirty (30) days written notification prior to the payroll input date of any change in the semi-monthly service charge.

Section H. Strikes.

Upon the consummation and during the term of this AGREEMENT, no member covered by this AGREEMENT shall strike or recognize a picket line of any labor organization while in the performance of the member's official duty.

Section I. Management Rights.

BOISE CITY shall retain the exclusive right to exercise the regular and customary functions of management, including but not limited to directing the activities of the Fire Department of BOISE CITY, determining levels of service and methods of operation, including contracting of Fire Department of BOISE CITY services to other agencies; the introduction of new equipment; the right to hire, lay-off, transfer and promote; to discipline and to discharge its members for cause; to determine work schedules and assign work; to determine the amount of apparatus in the main and reserve fleet; and to take such actions as necessary during a local emergency. Local emergency shall include but not be limited to natural disasters, epidemics, terrorist attacks, or other event deemed a local emergency by BOISE CITY. If after thirty (30) days a state of emergency is still in effect, the UNION may exercise the right to meet with BOISE CITY to discuss the necessity of any changes made to operations during the state of emergency. Provided, that nothing in this Article shall nullify: (1) Any provisions elsewhere in this AGREEMENT, or, (2) BOISE CITY's statutory obligation to negotiate with the UNION pursuant to Chapter 18, Title 44, Idaho Code.

Section J. Prevailing Rights.

All rights, benefits and privileges held by members which are not included in this AGREEMENT shall remain in force, unchanged and unaffected in any manner.

Section K. Construction.

This AGREEMENT has been negotiated and executed in compliance with the provisions of Chapter 18, Title 44, Idaho Code. The terms and conditions hereof are

binding upon and govern and control the rights, benefits and privileges of each party, and their successors and assigns, and inure to the benefit of the UNION and its officers and constituents thereof.

Section L. Saving Clause.

If any provisions of this AGREEMENT or the application of such provision shall be rendered or declared invalid by any court action or by reason of any existing or subsequently enacted legislation, the remaining parts or portions of this AGREEMENT shall remain in full force and effect. In such event, the parties agree to meet as soon as is practicable to renegotiate the provision or provisions declared invalid.

Section M. Rules and Regulations/Policies and Procedures

1. The UNION agrees that members shall comply with the following: Fire Department of BOISE CITY General Orders, Policies, Procedures, and BOISE CITY Employee Policy Handbook. In the event of a conflict or an inconsistency between the provisions of this AGREEMENT and the above-stated General Orders, Policies, Procedures, or BOISE CITY Employee Policy Handbook provisions, the provisions of this AGREEMENT shall prevail, and any such conflict or inconsistency shall be resolved in accordance with the following prevailing order of precedence:

- a. All laws;
- b. Collective Labor Agreement;
- c. General Orders;
- d. Policies and Procedures;
- e. BOISE CITY Employee Policy Handbook.

Recognizing that, pursuant to the parties' predecessor AGREEMENT, a joint committee has presented the parties with proposed revisions of the provisions of the BOISE CITY Civil Service Rules and Regulations and the BOISE CITY Employee Policy Handbook, the parties shall continue to negotiate such proposed revisions for inclusion into the General Orders.

2. BOISE CITY and the UNION recognize illegal drug usage, including misuse of legally prescribed prescription drugs and alcohol, as a threat to the public safety and welfare and to the employees of the Fire Department of BOISE CITY. Consistent with this recognition, BOISE CITY and the UNION agree to promote the health, safety and welfare of its

employees and the community by maintaining an alcohol and drug free workplace. The Drug-Free Workplace Policy shall be considered a Fire Department of BOISE CITY Rule and Regulation, subject to the grievance procedure set forth in Article 6. SPECIAL PROVISIONS; Section A. Grievances, Section B. Terminations, Demotions, and Suspensions without Pay, and Section C. Management Grievances. BOISE CITY and the UNION agree to meet and confer regarding any changes to the policy during term of this AGREEMENT.

ARTICLE 3. WAGES

Section A. Base Rate.

Base Rate of the members of the Fire Department of BOISE CITY shall be fixed and paid as set forth in Appendix A. PAY SCHEDULES, attached hereto and incorporated herein by attachment. Consistent with Appendix A, members shall receive a base rate increase of nine percent (9%) effective October 1, 2022, seven percent (7%) effective October 1, 2023, and three and one-half percent (3.5%) effective October 1, 2024 and October 1, 2025.

Section B. Career Development Program.

Members are encouraged to seek opportunities to enhance their careers and their professional development through a variety of educational and training opportunities. Unless otherwise pre-approved by the Department Head, members are responsible to pay the cost of the course work and complete the course work off duty.

1. Senior Fire Fighter. The Senior Fire Fighter will receive a Step 1 increase upon successful completion of three (3) "A" courses or nine (9) "B" courses or an equivalent combination of both listed in Procedure 351.32A. The Senior Fire Fighter will receive a Step 2 increase upon successful completion of an additional three (3) "A" courses (for a total of six (6) courses) or an additional nine (9) "B" courses (for a total of eighteen (18) courses) or an equivalent combination of both listed in Procedure 351.32A.
2. Captain. The Captain will receive a Step 1 increase upon successful completion of two (2) "A" courses or six (6) "B" courses or an equivalent combination of both listed in Procedure 351.32A. The Captain will receive a Step 2 increase upon successful completion of an additional two (2) "A" courses (for a total of four (4) courses) or an

additional six (6) “B” courses (for a total of twelve (12) courses) or an equivalent combination of both listed in Procedure 351.32A.

3. Battalion Chief. The Battalion Chief will receive a Step 1 increase upon successful completion of sixty (60) hours continuing education provided at least eight (8) hours is dedicated to each of the following areas: management/leadership, communication, finance and human resources. The Battalion Chief will receive a Step 2 increase upon successful completion of an additional forty (40) hours (for a total of one hundred (100) hours) of continuous education provided at least sixteen (16) hours is dedicated to each of the following areas: management/leadership, communication, finance and human resources. As an alternative to minimum hour’s requirement in multiple areas, Battalion Chiefs may attend the Executive Fire Officer program at the National Fire Academy and have those hours credited towards the step raise hours.

Continuing education credit shall be provided on an hour-for-hour basis for classes which have a target audience of mid-managers and/or executive managers, which the member has paid for and taken on his/her own time.

<u>Rank</u>	<u>Step 1</u>	<u>Step 2 (additional 2%)</u>
Senior Fire Fighter	One percent (1%) of Base Rate	Three percent (3%) of Base Rate
Captain	One percent (1%) of Base Rate	Three percent (3%) of Base Rate
Battalion Chief	One percent (1%) of Base Rate	Three percent (3%) of Base Rate

Step 1 Carryover: A Senior Fire Fighter or Captain who has fulfilled the requirements of Step 1:

1. When promoted, will receive one percent (1%) of their Base Rate; which will begin the first day of the bi-week following promotion and,
2. Upon completion of the Step 1 requirements for Captain or Battalion Chief, will begin receiving an additional one percent (1%) of their Base Rate; which will begin the first day of the bi-week following promotion and,
3. Upon completion of the Step 2 requirements for Captain or Battalion Chief, will begin receiving an additional two percent (2%) of their Base Rate which will begin the first day of the bi-week following promotion.

Step 2 Carryover: A Senior Fire Fighter or Captain who has fulfilled the requirements of Step 2:

1. When promoted, will receive three percent (3%) of their Base Rate; which will begin the first day of the bi-week following promotion and,
2. Upon completion of the Step 1 requirements for Captain or Battalion Chief, will begin receiving an additional one percent (1%) of their Base Rate; which will begin the first day of the bi-week following promotion and,
3. Upon completion of the Step 2 requirements for Captain or Battalion Chief, will begin receiving an additional two percent (2%) of their Base Rate. which will begin the first day of the bi-week following promotion.

Step raises may not be attained for a previously held rank.

Each course may only be applied once toward a step raise.

Section C. Longevity Pay

Members shall receive a fifty-five hundredths' percent (.55%) increase of the member's Base Rate for each subsequent qualifying year of service in the Fire Department of BOISE CITY, recognizing the increasing proficiency which accrues with increased years of service. Members shall start receiving this increase in the first payroll period following the qualified member's anniversary date with the Fire Department of BOISE CITY.

Section D. Overtime.

1. Overtime shall be compensated at the Overtime Rate.
 - a. Up to thirty (30) minutes shall be deemed to be one-half ($\frac{1}{2}$) hour over-time.
 - b. Over thirty (30) minutes in each hour shall be deemed one (1) hour overtime.
2. At the request of the member, the shift Battalion Chief may provide that, in lieu of monetary payment for overtime, the member will earn compensatory time at one and one-half (1.5) times hours worked. Otherwise, all overtime earned by a member will be paid as part of their regular paycheck at the Overtime Rate. A member, may receive payment of some or all accumulated compensatory time as part of the annual selldown outlined in Article 4. MEMBER BENEFITS; Section A. Vacations; Subsection 8. Annual Selldown.

3. The maximum total accrual for compensatory time shall at no time exceed four hundred (400) hours.
4. A member ordered to remain on duty pending the arrival of the member's relief shall be paid at the Overtime Rate from the regular shift change time until properly relieved.
5. Overtime shall be distributed as follows:
 - a. Overtime, in the Operations Division, shall be distributed as equally as practicable, except:
 - i. To fill a position in an emergency situation.
 - ii. For staffing requirements for Paramedic Engines, the Dive Company, the Technical Rescue Company, the Hazardous Materials Company, and the ARFF Company when a sufficient number of certified members are not available.
 - iii. For three (3) hour blocks of leave.
 - b. Overtime for all other Divisions shall be first distributed to those members within the same rank and Division as equally as practicable. For all Divisions except Operations, a list of qualified members shall be established for overtime consideration. The distribution of overtime shall be based upon the need of the department.
6. FLSA Overtime. For calculation of FLSA Overtime, the hours paid will be calculated at the FLSA Overtime Rate. The Standard FLSA period is 182 hours (in a 24-day cycle). Sick Leave, Kelly Days, Court and Jury Leave, Military Leave, Service Sick, Extended Sick Leave, Leave Without Pay, and/or Bereavement Leave used by a member during the FLSA period shall not count as hours worked when making the calculation.

Section E. Call Back.

Call back shall be paid at the Overtime Rate and shall start once the member has received the call to report to work, so long as the member leaves his or her present location to proceed to the emergency call back location. In accordance with Article 3. Wages; Section D. Overtime, a member called to work at a time other than that member's regularly scheduled shift shall accrue a minimum of three (3) hours at the Overtime Rate unless such time is continuous with his/her scheduled work-day. In that case, the member

shall be paid for the actual call back hours worked to the nearest one-half (½) hour at the Overtime Rate. On-Call Incident Safety Officers that are called back, respond to an emergency location, or are cancelled enroute, shall be paid for the actual call back hours worked to the nearest one-half (½) hour at the Overtime Rate.

Section F. Working Out of Classification (WOC).

A member covered by this AGREEMENT shall, when authorized to carry out the duties of a position of a higher rank, receive the difference in pay between the average Standard Rate of all members in the rank that member fills and the average Standard Rate of all members in the rank of the member's current rank. For members in the Fire Fighter rank the additional pay shall be the difference between the average Standard Rate of all members in the rank that the member fills and the average Standard Rate of all members in the Fire Fighter I, II, and III rank combined. This Rate will be re-calculated and applied annually in conjunction with the first month in the new fiscal year. Working out of class is included in the FLSA Overtime Rate. Battalion Chiefs may not work out of rank as Senior Fire Fighter or Fire Fighter.

In the absence of the Fire Marshal Division Chief, the Assistant Fire Marshal or the Assistant Fire Chief or a Captain Prevention authorized to carry out the duties of the Fire Marshal Division Chief will assume the duties of the Fire Marshal Division Chief. When a Captain Prevention assume the duties, they shall receive the difference in pay between the average Standard Rate of all the members in the Captain Prevention rank and the Fire Marshal Division Chief. A Captain Prevention shall not be compensated at the above rate for call back standby or for overtime spent performing their Captain Prevention duties.

Section G. Mileage for Station Changes.

If any member is required to use a personal vehicle to change that member's working place from that to which the member reported for duty, the member shall be entitled to mileage at the prevailing BOISE CITY rate for the distance traveled. Payment for travel mileage shall be included on the member's regular paycheck.

Section H. Court and Jury Leave.

Any member who is directed by proper authority to serve on jury duty, or to appear as a witness in any judicial or administrative proceeding involving job-related matters while on duty, shall not be considered absent from duty, and shall be considered to be on

Court/Jury leave with Composite Pay, so long as that member shall have provided his superior with prior notice of such obligation. A member who is on scheduled leave and who is required to serve on jury duty or as a witness may elect to return to shift duty for that period during which the member is serving on jury duty or as a witness.

Whenever a member has been directed by BOISE CITY to appear as a witness, or has been subpoenaed as a witness in connection with a matter arising out of the course of that member's employment with BOISE CITY, and is required to respond to such subpoena on a scheduled day off, the member shall receive pay at the Overtime Rate.

Members serving on jury duty or as witnesses who physically report for such duty and who are released in the first half of their shift shall contact their supervisors for instructions to return to work; however, members so released, who will be required to continue court/jury duty the morning following their evening shifts will be granted the evening off so as to be ready for jury duty the next morning.

Members who are involved in suits against BOISE CITY as plaintiffs, or who are parties to such suits, shall pursue such suits off-duty.

Section I. Separation.

When a non-Beginning Fire Fighter terminates employment for any reason, the member will receive pay in accordance with that member's wage schedule, together with any and all final compensation due. Payment will occur on that member's next regular bi-weekly paycheck in which the separation date coincides with the pay date, or within ten (10) days (excluding weekends/holidays), whichever is sooner. If the member gives payroll a written request for earlier payment, the member will be paid within forty-eight (48) hours (excluding weekends/holidays) of receipt of the request or the last day worked, whichever is later. Final compensation is calculated as follows: the member's number of regular scheduled shifts worked (includes leave time) in the separation bi-week will be divided by the number of regular scheduled shifts in the separation bi-week then multiplied by the average hours per bi-week, as outlined in Article 5. HOURS OF WORK; Section A. Shift Duty Members or Section B. Forty (40) Hour Workweek Members, then multiplied by the Composite Rate. Sick and vacation accruals that are earned during the month of separation will be calculated as follows: the member's number of regular scheduled shifts worked (includes leave time) in the separation month will be divided by

the number of regular scheduled shifts in the separation month then multiplied by the monthly accrual as outlined in Article 4. MEMBER BENEFITS; Section A. Vacations and Section C. Sick Leave. Other final settlements will occur in accordance with this AGREEMENT.

Section J. Vacancies.

1. A vacancy shall be filled within thirty (30) calendar days following the date the position is vacated. The filling of the position shall be from the list of eligible applicants/candidates. Filling of a vacant position may be delayed by mutual agreement of BOISE CITY and the UNION because of reorganization or other reasons where the position may not be maintained.
2. When hiring Recruit or probationary Fire Fighters for replacement, BOISE CITY will be allowed a ninety (90) calendar day grace period to allow for qualification examinations and the possibility that additional Recruit or probationary Fire Fighters may be hired to provide a training class of more than one (1) Fire Fighter. During the ninety (90) calendar day grace period, if additional replacements appear imminent, the grace period may be extended upon mutual consent of BOISE CITY and the UNION.
3. If hiring entry lateral firefighters, an entry lateral policy and plan will be developed in the General Orders (GO) Committee.

Section K. Call Back Standby.

When assigned by the applicable Division Chief, one (1) Captain Training qualified as an Incident Safety Officer, one (1) Captain Prevention assigned as a Fire Investigator, and one (1) Captain Logistics may be assigned to be on standby for call back. Call Back Standby is paid at the Standard Rate or Compensatory Time. Call Back Standby compensable time shall be as follows:

1. Monday through Friday: Two (2) hours.
2. Saturday, Sunday and Holidays: Four (4) hours.

Section L. Deployments.

Members that are deployed for resource ordered wildfire and/or all hazard incident assignments outside their regularly scheduled hours of work shall be compensated for a minimum of 16 hours per day, or actual hours worked, whichever is greater at their Overtime Rate, excluding travel days.

ARTICLE 4. MEMBER BENEFITS

Section A. Vacations.

Members shall be entitled to vacation at the Composite Rate in accordance with the following schedule and requirements:

1. Shift Duty Members:

<u>Years of Employment</u>	<u>Monthly Accrual</u>	<u>Maximum Accumulation</u>
Less than 5 years	18.67 hours	280 hours
5 years but less than 10 years	21.67 hours	312 hours
10 years but less than 15 years	23.67 hours	336 hours
15 years but less than 19 years	27.67 hours	360 hours
19 years and over	27.67 hours	520 hours

There shall be a sufficient amount of hours available before usage occurs. Balances may not go into the negative. Shift Duty Members will use vacation leave in thirty (30) minute increments. Forty Hour Members will use vacation leave at the rate of actual hours used.

A conversion factor of .736 shall be used for Shift Duty Members transferring to a forty (40) hour workweek schedule in any of the following divisions: Fire Prevention, Logistics, or Training/Safety.

2. Forty (40) Hour Workweek Members:

<u>Years of Employment</u>	<u>Monthly Accrual</u>	<u>Maximum Accumulation</u>
Less than 5 years	9 hours	206 hours
5 years but less than 10 years	11 hours	230 hours
10 years but less than 15 years	13 hours	247 hours
15 years but less than 19 years	16 hours	265 hours
19 years and over	16 hours	383 hours

A conversion factor of 1.36 shall be used for Forty (40) Hour Workweek Members transferring to a shift duty schedule.

3. Probationary members must have completed six (6) months of continuous service to BOISE CITY in order to use vacation leave. Probationary members begin accruing vacation leave upon date of hire and will be credited their accumulated vacation accrual balance upon completion of six (6) months of service. An accrual amount

equivalent to six (6) months plus one bi-weekly accrual will be credited to the member and shall be effective from the date of hire.

Probationary members may use sick leave immediately. Probationary members begin accruing sick leave upon date of hire. An accrual amount equivalent to one bi-weekly accrual will be credited to the member and shall be effective from the date of hire.

If probationary members do not complete six (6) months of continuous service with BOISE CITY, vacation and sick balances will not be paid out.

4. Vacation/Compensatory time shall be used in blocks of time as follows: 0800-2200 (any three (3) hour block within this period); 2200-0800; or a twenty-four (24) hour block.
5. For Shift Duty Members, a formula shall be utilized to calculate the number of members that are allowed vacation, Kelly Day, Union Pool or compensatory time. The formula is the average number of authorized Fire Fighter positions per shift (averaged between shifts) divided by a factor of seven and one-half (7.5). There will be no rounding up of numbers from the formula. The product must reach a whole number to allow the next increase in the number of members allowed time off. In the event of an increase in authorized Fire Fighter positions (such as hiring for a new company, increasing staffing levels, etc.), the number of members allowed time off will be adjusted effective on the date of hire. Early hiring for a pending recruit academy/carrying extra positions will not require an adjustment. Likewise, in the event of a decrease in authorized Fire Fighter positions (such as a reduction in force, discontinuation of the Boise-Whitney or Boise-North Ada County Fire and Rescue (NACFR) service Agreements, etc.), the number of members allowed off will be adjusted effective on the day of the reduction.

Example: As of September 1, 2014 there are two hundred forty-eight (248) authorized Fire Fighter positions assigned to Operations, divided by three (3) platoons, equals eighty-two and two-thirds (82.66) members per shift. Eighty-two and two-thirds (82.66) divided by seven and one-half (7.5) equals eleven and two hundredths (11.02). The Assistant Fire Chief may, at their sole discretion, allow additional members time off subject to the conditions: 1) that no additional cost to BOISE CITY through minimum

staffing or call back of non-scheduled members is realized, and 2) that the Assistant Fire Chief may wait until the day requested to approve the time off.

6. Members assigned to Training/Safety and Logistics shall be limited to two (2) members off duty for vacation, Kelly Day or compensatory time in each respective division at any one time. Three (3) members assigned to Training/Safety and Logistics shall be allowed vacation, Kelly Day or compensatory time off for the following: Christmas Eve, the day after Christmas (if a regular work day), the day prior to and the day after Thanksgiving, the Friday before and the Tuesday after Memorial Day, and the Friday before and the Tuesday after Labor Day. Members assigned to Fire Prevention shall be limited to three (3) members off duty for vacation, Kelly Day or compensatory time at any one time. Scheduled vacation leave, Kelly Day, compensatory time off or Holiday Leave on the 3rd and 4th of July shall be limited to two (2) members off. The Fire Chief may, at his sole discretion, allow additional members time off.
7. Members who initiate a request for reassignment from one fire duty shift to another will not be assigned the same scheduled vacation, Kelly Day or compensatory time days unless the previously scheduled dates are available without any additional cost to BOISE CITY through minimum staffing or call back of non-scheduled members. In the event that the reassigned member so requests, the member shall be allowed to select, based upon the seniority of the member transferred and any other Fire Department of BOISE CITY vacation selection guidelines, from the dates made available for vacation, Kelly Day or compensatory time off as a result of the reassignment. Members promoted, voluntarily responding to a Fire Department of BOISE CITY request, or involuntarily reassigned from one shift to another shall not be denied the opportunity to take vacation, Kelly Day or compensatory time off on the scheduled dates approved prior to the date of the reassignment.
8. Annual Selldown. Members may annually elect to receive payment, during the following year, for accrued vacation or compensatory time.

The election for accrued vacation and compensatory time shall be stated as a number of accrual hours for each accrual category. The number shall be stated to the nearest one-half (0.5) hour. Accrued vacation time may be elected up to a maximum

of two hundred four (204) hours for Shift Duty Members and up to a maximum of seventy (70) hours for Forty (40) Hour Workweek Members. All accumulated compensatory time in excess of a total of forty (40) hours for overtime and in excess of a total of forty (40) hours for constant staffing will automatically be paid. Selldown will be paid at the current Standard Rate for vacation hours and at the current Composite Rate for compensatory hours in effect at the time of selldown, in a regular payroll check prior to November 30th of each year. Whenever a member reaches between eighty percent (80%) and one hundred percent (100%) of their maximum vacation accrual, BOISE CITY shall send an email to the member notifying the member of such accumulation. The notifications shall occur on the day of the accrual and shall continue until the member's vacation accrual drops below eighty percent (80%) or equals one hundred percent (100%).

The above requirements regarding compensatory time have been instituted to avoid the tax implications of constructive receipt which would require that the member be taxed immediately upon earning the compensatory time. It is the parties' belief that the above agreement will allow members to accumulate compensatory hours with taxes only being assessed when the compensatory hours are paid.

Section B. Holidays.

1. Members shall be entitled to eleven (11) holidays as follows:
 - 1) New Year's Day
 - 2) Martin Luther King Jr.'s Birthday
 - 3) President's Day
 - 4) Memorial Day
 - 5) Juneteenth
 - 6) Independence Day
 - 7) Labor Day
 - 8) Columbus Day (Floating Holiday for Day Crew)
 - 9) Veteran's Day
 - 10) Thanksgiving Day
 - 11) Christmas Day

The Forty (40) Hour Workweek Member will receive holiday pay for the number of hours the member is regularly scheduled. The Floating holiday for a Forty (40) Hour Workweek Member is earned and taken based on the number of hours the member is regularly scheduled.

In addition, members shall be entitled to a holiday (designated as such) approved by Congress. If a new holiday is designated by Congress, then during the next fiscal year and all subsequent years, each Shift Duty Member will be entitled to eight (8) hours of vacation leave, to be added to their vacation accrual balance in the bi-weekly pay period in which the new holiday falls and all subsequent pay period accruals will be adjusted to accrue an additional eight (8) hours of vacation leave annually.

2. When a Forty (40) Hour Workweek Member is required to work on a holiday, all such hours worked shall be Overtime. Members assigned to a forty (40) hour workweek schedule will use the floating holiday at any time prior to December 31st in the year in which it is accrued. A floating holiday shall not be considered overtime and those members who take time off for the floating holiday during the calendar year in which it is accrued shall do so in conformity with the requirements of Article 4. MEMBER BENEFITS; Section A. Vacations; Subsection 6.

Section C. Sick Leave.

1. A member shall be entitled to sick leave at the Composite Rate. All members shall be allowed to accumulate commencing with their first day of the bi-weekly pay period following their date of hire with the Fire Department of BOISE CITY. There shall be a sufficient number of hours available before usage occurs. Balances may not go into the negative.
2. Shift Duty Members shall accumulate sixteen (16) hours of sick leave for each month of service. A conversion factor of 0.5 shall be used for Shift Duty Members transferring to a forty (40) hour workweek schedule in any of the following divisions: Fire Prevention, Logistics, or Training.
3. Forty (40) Hour Workweek Members shall accumulate eight (8) hours of sick leave for each month of service. A conversion factor of 2.0 shall be used for Forty (40) Hour Workweek Members transferring to a shift duty schedule.

4. In the event of extreme cases of illness or injury, the Fire Chief, upon investigation, may grant extended sick leave benefits for cause, provided the member has enrolled, applied, and been approved for Long-Term Disability Insurance (Article 4.

MEMBER BENEFITS; Section F. Insurance. Subsection 5. Long-Term Disability Insurance). Members who apply for Long-Term Disability, but are denied enrollment, will not be considered ineligible for the extended sick leave benefit solely for that reason. Extended sick leave benefits shall only be available once the member has exhausted all of his/her BOISE CITY provided paid leave (includes without limitation sick, vacation, compensatory time, and Kelly Days), and will continue to be exhausted as accrued on extended sick leave. In the event retroactive pay for Long-Term Disability Insurance covers a period during which extended sick leave was received, the member shall reimburse BOISE CITY for the value of the extended sick leave pay made by BOISE CITY for which payment was received. The reimbursement shall occur through a payroll deduction or as otherwise agreed to in writing between BOISE CITY and the member.

Extended sick leave is granted at the sole discretion of the Fire Chief. The Fire Chief may consider numerous factors in making the decision to grant extended sick leave including, but not limited to: the member's past patterns and usage of sick leave, economic factors, Long-Term Disability Insurance, length of time the member will be off, and the willingness of the membership to assist with coverage.

Members who are granted extended sick leave shall receive Composite Pay, which specifically excludes overtime. Under long-term disability, the member receives sixty-six and two-thirds percent (66.66%) of their Base Rate, before applicable FICA taxes. The extended sick leave benefit extended to a member will be thirty-three and one-third percent (33.33%) of the member's Composite Pay, which specifically excludes overtime. At no time will the member receive more than one-hundred percent (100%) of their Composite Pay, excluding overtime, when long-term disability and extended sick leave benefits are combined. BOISE CITY granting of extended sick leave will be done within the confines of applicable laws, including, but not limited to the Americans with Disabilities Act, Family and Medical Leave Act, and Idaho's Workers Compensation law.

5. All members will use sick leave at the rate of actual hours used in thirty (30) minute increments.
6. BOISE CITY and the UNION agree that sick leave utilization shall be allowed only in cases of sickness or injury of a member or authorized family members or disability of the member. Improper use of sick leave is just cause for disciplinary action, and improper use of sick leave will be charged as leave without pay using the Composite Rate. Members shall fully cooperate with person(s) designated by the Fire Chief to review sick leave utilization.
7. Shift Duty Members are required to provide the shift Battalion Chief with a written statement from a healthcare provider certifying that the absence from work was due to sickness or injury of a member or authorized family member after three (3) consecutive shifts. Forty (40) Hour Workweek Members are required to provide the applicable Division Chief with a written statement from a healthcare provider certifying that the absence from work was due to sickness or injury of a member or authorized family member after five (5) consecutive days. Members may also be required to provide the shift Battalion Chief or applicable Division Chief with a written statement from a healthcare provider certifying that the absence from work was due to sickness or injury of a member or authorized family member under any of the following conditions:
 - a. Sick leave utilization on a holiday or within forty-eight (48) hours prior to or after a holiday for Shift Duty Members or the work day prior to or after a holiday for Forty (40) Hour Workweek Members.
 - b. Sick leave utilization the shift prior to or after vacation, Kelly Day, compensatory time or union pool time for Shift Duty Members or the work day prior to or after vacation, Kelly Day, compensatory time or union pool time for Forty (40) Hour Workweek Members.
 - c. Sick leave utilization on Regular Duty Trades (RDTs) days by the member covering a RDT.
 - d. When the Fire Department of BOISE CITY has reason to believe there is abuse of sick leave.

8. BOISE CITY will, in the event of an injury to a member incurred in the course of duty or employment and taken off work by an approved provider, provide wage loss recovery and pay the injured member that member's Composite Pay rather than the statutory workers' compensation benefit amount pursuant to the provisions of §72-401 et. seq. Idaho Code. The obligation of BOISE CITY to provide wage loss recovery shall cease when any of the following first occur:
 - a. Release by a physician to return to regular duty work; or
 - b. Appropriate modified duty work is offered by BOISE CITY upon release by a physician to return to work with restrictions; or
 - c. Maximum medical improvement is certified by a physician; or
 - d. Retirement.

It is acknowledged that benefits received by an injured member pursuant to the Workers' Compensation Law of Idaho are computed on a seven (7) day week without regard to Sundays, holidays and working days, and it will therefore be necessary to relate such benefits to a bi-weekly basis as required by the Ordinances of Boise City. Members will continue to accrue sick leave and vacation while on workers compensation.

9. Members shall also be entitled to the benefits provided in the Family Medical Leave Act (FMLA).

Section D. Accumulated Sick Leave (ASL).

A Shift Duty Member who has accumulated sick leave at the time of his/her retirement shall receive twenty-seven and one-half percent (27.5%) of ASL at the Standard Rate to be transferred or available for transfer in accordance with the applicable provisions of the HRA-VEBA (Article 4. MEMBER BENEFITS; Section G. HRA-VEBA). A Forty (40) Hour Workweek Member who has accumulated sick leave at the time of his/her retirement shall receive fifty-five percent (55%) of ASL at the Standard Rate to be transferred or available for transfer in accordance with the applicable provisions of the HRA-VEBA (Article 4. MEMBER BENEFITS; Section G. HRA-VEBA).

A Shift Duty Member who has accumulated sick leave at the time of his/her death shall receive payment at twenty-seven and one-half percent (27.5%) of ASL at the Standard Rate. A Forty (40) Hour Workweek Member who has accumulated sick leave at the time of his/her death shall receive payment at fifty-five percent (55%) of ASL at the

Standard Rate. For those who die in the line of duty, payment will be made to the beneficiary at one-hundred percent (100%) of accumulated hours at the Composite Rate.

Section E. Bereavement.

BOISE CITY will permit two (2) full shifts off at the Composite Rate for Shift Duty Members and three (3) eight (8) hour days off at the Composite Rate for Forty (40) Hour Workweek Members, or more if determined to be appropriate by the Fire Chief, for deaths occurring in the member's family. "Family" shall include:

1. Spouse; or
2. Children, stepchildren, grandchildren, guardian children; or
3. Member's or spouse's parents; or
4. Member's or spouse's siblings and spouses; or
5. Member's or spouse's grandparents.

Section F. Insurance.

Terms regarding health care coverage provided by the Boise Fire & Police Trust is memorialized in a Memorandum of Agreement between BOISE CITY, the UNION and the International Brotherhood of Police Officers Local 486.

1. Definition of Coverage. As used in this Section, the term coverage shall refer to any and all plan provisions affecting either the amount of or availability of benefits, including, without limitation, any and all plan provisions relating to the percentage of coverage available, deductibles, co-insurance, eligibility requirements and exclusions.
2. Benefit Eligibility. Benefit eligibility begins on the first day of the month following the date of hire.
3. Medical and Dental Insurance. BOISE CITY agrees to provide medical and dental insurance coverages pursuant to the plans set forth in the UNION's Health Care Trust. Members agree to pay the member share as set forth in the UNION's Health Care Trust.
4. Life Insurance. BOISE CITY agrees to provide life insurance coverage and pay one hundred percent (100%) of the premiums as follows:
 - a. Member's life insured at one (1) times the member's annualized Base Rate;
 - b. Member's spouse's life insured at five-thousand dollars (\$5,000);

- c. Member's dependent children's lives insured at twenty-five hundred dollars (\$2,500) each.

Members who desire to purchase supplemental coverage for themselves, up to a maximum of four (4) times their annualized Base Rate, may do so by paying the age-rated premium in effect at the time of purchase.

5. Long-Term Disability Insurance. BOISE CITY shall make available to members a long-term disability plan. Enrollment in this plan shall be voluntary, and premiums for this coverage shall be paid entirely by participating members.
6. Retiree's Life Insurance. BOISE CITY shall provide life insurance for all retirees and pay one hundred percent (100%) of the premiums for ten-thousand dollars (\$10,000). For the purposes of this paragraph, retirees are defined as those receiving retirement benefits from the Public Employee Retirement System of Idaho (PERSI).
7. Flexible Spending Account. Members shall be eligible to participate, at their option, in BOISE CITY's flexible spending account program. Members participating in the traditional health insurance option, set forth in the UNION's Health Care Trust, shall receive twenty-five dollars (\$25.00) per month into their Flexible Spending Account paid for by the UNION's Health Care Trust.

Section G. HRA-VEBA.

BOISE CITY and UNION agree to participate in an Internal Revenue Code 501(c)(9) HRA-VEBA. The plan shall provide each member with an individual account to provide for post-employment health benefits.

1. Boise City shall contribute one percent (1%) of member's Base Rate per annum.
2. A monthly payment of four and one-half percent (4.5%) of the member's Standard Rate multiplied by two thousand eight hundred twenty-four annual hours (2,824) divided by twelve (12) months for Shift Duty Members or two thousand eighty annual hours (2,080) divided by twelve (12) months for Forty Hour (40) Workweek Members, shall be made into the Boise Fire & Police Trust. The UNION agrees that the two and one-half percent (2.5%) increase will be used in calculating Standard Rate in future negotiations for purposes of total wage compensation analysis only and shall not change the amount of Standard Rate for any other purpose.

3. BOISE CITY shall transfer accrued sick leave of Shift Duty Members, in excess of twelve hundred (1200) hours, into the member's HRA-VEBA account in January of each year. BOISE CITY shall transfer accrued sick leave of Forty (40) Hour Workweek Members, in excess of six hundred (600) hours, into a member's HRA-VEBA account in January of each year. Value of the excess hours used for the HRA-VEBA will be determined using the sick leave balances from the last day of the bi-weekly pay period of the calendar year. Payment shall be made in the second (2nd) bi-weekly pay period of January at the rate of thirty-five percent (35%) for Shift Duty Members and seventy percent (70%) of Forty (40) Hour Workweek Members' Standard Rate on the last day of the last bi-weekly pay period of the calendar year. The hours and value transferred to the HRA-VEBA will be removed from the ASL for each participant.

Section H. Deferred Compensation.

Acknowledging that a referendum was held resulting in the loss of Social Security coverage for member(s), BOISE CITY shall, in lieu of paying Social Security employer contributions, pay up to six and two-tenths percent (6.2%) of bi-weekly wages, that would have been subject to Social Security taxes prior to Social Security withdrawal, up to the maximum Social Security taxable earnings amount, into the following account: PERSI choice 401(k) plan provided the member establishes an account and makes a one percent (1%) contribution into such account.

Should the Social Security obligation for general employees be reduced, the employer contribution to members shall also be reduced to the new contribution. In the event that UNION members become part of mandatory inclusion in Social Security in the future, the mandated employer Social Security contribution then in effect shall be paid by BOISE CITY.

Section I. Survivor's Benefits.

1. Life Insurance. If a member dies while employed with the Fire Department of BOISE CITY, BOISE CITY agrees to pay to the spouse or dependent children of the deceased member three (3) months' pay at the member's Composite Pay as survivor's benefits in addition to any other insurance benefits provided by BOISE CITY.
2. Health Insurance. Survivor's Coverage. In the event a member dies in the line of duty, BOISE CITY will provide dependent(s) identified on the insurance records of BOISE

CITY with thirty-six (36) months of the member's Per Employee Per Month (PEPM) health insurance premium to the UNION's Health Care Trust.

ARTICLE 5. HOURS OF WORK

Section A. Shift Duty Members.

The hours of work for Shift Duty Members shall be fifty-four and thirty-one one hundredths (54.31) hours per week or one hundred eight and sixty-two one hundredths (108.62) hours per bi-week. Such hours per week/bi-week shall be performed and executed through the existing three (3) platoon (48/96) system. Nothing in this AGREEMENT shall be construed to prevent BOISE CITY and UNION from entering into a Memorandum of Understanding for a trial period of an alternate work schedule. To permanently change the existing three (3) platoon (48/96) system, a vote of the UNION membership and approval by the City Council would be required.

Section B. Forty (40) Hour Workweek Members.

Forty (40) Hour Workweek Members will be assigned Monday through Friday, 8:00 a.m. to 5:00 p.m., unless flex-time schedules are approved by the Assistant or Division Chief. Flex-time may be scheduled in Divisions provided that the office core hours (Monday through Friday, 8:00 a.m. to 5:00 p.m.) are covered; and will not begin before 7:00 a.m. nor extend beyond 6:00 p.m. unless mutually agreed upon by the affected member(s), the UNION and BOISE CITY. Flex-time schedules may be suspended by the Assistant or Division Chief upon thirty (30) days written notice. A member may request to flex hours within a workweek, subject to the approval of their Assistant or Division Chief. When a designated holiday falls on a member's regularly scheduled day off, other than Saturday or Sunday, the member may receive one (1) day straight compensatory time for the number of hours regularly scheduled. If the supervisor has knowledge that a member will be separated from BOISE CITY on or before the actual or observed holiday, a rescheduled holiday, or compensatory time shall not be granted. Forty (40) Hour Workweek Members, assigned to the Training/Safety Division, may work shift duty hours. Their pay remains the same in accordance with their current rank as further defined in Appendix

A. Their FLSA workweek remains the same in accordance with a Forty (40) Hour Workweek Member and overtime is earned in accordance with Article 3, WAGES; Section D. Overtime.

Nothing in this AGREEMENT shall be construed to prevent BOISE CITY and UNION from entering into a Memorandum of Understanding for a trial period of an alternate work schedule.

Section C. Hourly Rate Conversion to Bi-weekly Equivalent.

The bi-weekly equivalent (Base, Standard, Composite Rates) for members will be calculated as follows:

1. Shift Duty Members: Hourly rate multiplied by one hundred eight and sixty-two one hundredths (108.62) average hours per bi-week.
2. Forty (40) Hour Workweek Members: Hourly rate multiplied by eighty (80) average hours per bi-week.

Section D. Kelly Day.

Each member shall earn one (1) Kelly Day per quarter of each calendar year with all quarters shown in the member's accrual each January. Shift Duty Members shall earn twenty-four (24) hours for each Kelly Day and Forty (40) Hour Workweek Members shall earn eight (8) hours for each Kelly Day. Each member will be compensated at the Composite Rate for Kelly Days earned but not taken, or charged at the Composite Rate for Kelly Days taken but not earned, in the event of termination, layoff or reduction in force. Kelly Days not used during the calendar year in which earned shall not carry over to the following year. Kelly Days must be taken as an entire Shift for Shift Duty Members or eight (8) hours for Forty (40) Hour Workweek Members.

A conversion of twenty-four (24) hours to eight (8) hours for the current balance shall be used for Shift Duty Members transferring to an assigned forty (40) hour workweek schedule; or, if on modified duty, upon usage. A conversion of eight (8) hours to twenty-four (24) hours for the current balance shall be used for Forty (40) Hour Workweek Members transferring to an assigned shift duty schedule, or if the hours were converted while on modified duty.

Section E. Minimum Staffing.

All in-service companies shall have the following minimum staffing levels of non-probationary Fire Fighters:

Battalion Chief Command Vehicles: One (1) Battalion Chief - There shall be a minimum of three (3) Battalion Chief Command Vehicles per shift.

Engine Companies: One (1) Captain, One (1) Senior Fire Fighter and One (1) Fire Fighter.

Truck Companies (Non-Tillered): One (1) Captain, One (1) Senior Fire Fighter and Two (2) Fire Fighters.

Truck Companies (Tillered): One (1) Captain, Two (2) Senior Fire Fighters and One (1) Fire Fighter.

Water Tenders: One (1) Senior Fire Fighter.

ARFF Command Vehicles: One (1) Captain, unless FAA requirements or safety conditions warrant more personnel.

ARFF Crash Trucks: One (1) Senior Fire Fighter and one (1) Fire Fighter, unless FAA requirements or safety conditions warrant more personnel.

BLS Medical Aid Cars: One (1) Captain and one (1) Senior Fire Fighter.

ALS Medical Aid Cars: One (1) Captain and one (1) Paramedic-Fire Fighter.

In case of an incapacitating injury or illness or other uncontrollable circumstances, a company may drop below minimum staffing levels while remaining in service, however, immediate steps must be taken to bring the company back to minimum levels. In no case will a company remain in service with less than minimum staffing for longer than one (1) hour. If attempts to bring staffing up to minimum levels fail or prove unfeasible, the Fire Chief or other Chief Officers retain the right to remove the company from service until staffing levels can be attained.

For the purpose of this Section, a Fire Fighter is an employee of the Fire Department of BOISE CITY who the Training/Safety and the Emergency Services Assistant Chief concur is competent to efficiently and safely perform the duties of a Fire Fighter within the Operations Division, provided, however, that in no case shall an employee be considered a Fire Fighter for purposes of this Section until that employee

has served at least four (4) months continuous service from the date of hire and has completed the Fire Department of BOISE CITY Recruit Academy.

Section F. Work Duties.

Except as otherwise provided by this AGREEMENT, every day of the week shall be a standard work-day with the duties and training to be performed by members as assigned by the Battalion Chief.

Saturday work duties shall ordinarily include only apparatus, equipment, and station maintenance, individual study, company briefings, physical fitness, scheduled meetings/training/performance standards and response to all emergency and non-emergency calls. Sunday work duties shall ordinarily include only apparatus, equipment, and station maintenance, individual study, company briefings, physical fitness and response to all emergency and non-emergency calls. Provided, however, that in the event that company's routine work or training assignments are behind schedule, the Battalion Chief may assign make-up duties and/or make-up training on Sundays. Also in the event an individual member is behind schedule for specialty teams training and/or certification, the Battalion Chief may assign make-up training on Sundays. Nothing in this Section shall be construed to limit a company officer from training their company on a Sunday to attain proficiency as a company.

On holidays, work duties shall include only apparatus, equipment, and station maintenance, individual study, and response to all emergency and non-emergency calls.

ARTICLE 6. SPECIAL PROVISIONS

Section A. Grievances.

1. Intent. It is the declared objective of the parties to encourage prompt and informal resolution of member complaints as they arise and to provide recourse to orderly procedures for the satisfactory adjustment of complaints. With regard to this Grievance Section only, working days means the days of the week, Monday through Friday, excluding Saturdays, Sundays and Holidays.
2. Election of Procedure. Nothing in this grievance procedure prevents any member and their chief officer from resolving any grievable incident prior to the filing of a grievance. The member may select only one (1) of the following grievance procedures:
 - a. The grievance procedure hereinafter; or,

b. The Boise City Employee Grievance Procedure.

Option b. would apply to grievances of an individual nature. Once an election is made as evidenced by the filing of the written notice of intent to grieve, the member waives the other procedure and shall be committed to use exclusively the procedure elected for processing the grievance in question, and the member must comply with all notice requirements and time limitations therein prescribed.

3. Grievance Procedure. The following procedures shall apply to grievances filed under this procedure:

- a. A grievance is defined as a complaint by one (1) or more members of the UNION, involving the interpretation or application of this AGREEMENT or written policies and rules of the Fire Department of BOISE CITY, or disciplinary action.
- b. Written grievances at each step shall contain the following information:
 - i. A written statement of the specific provisions of this AGREEMENT or other policies alleged to have been violated, misapplied or misinterpreted.
 - ii. A statement of facts as to the manner in which the provision is purported to have been violated, misapplied or misinterpreted.
 - iii. The date or dates on which the alleged violation(s) occurred.
 - iv. The specific remedy or adjustment sought.

Strict technical compliance with the terms of this Section is not required to preserve the arbitrability or grievability of the grievance.

- c. The written response by BOISE CITY shall contain the following:
 - i. Affirmation or denial of the facts upon which the grievance is based.
 - ii. An analysis of the alleged violation, misinterpretation or misapplication of the AGREEMENT.
 - iii. The remedy or adjustment, if any, proposed by BOISE CITY.

Strict technical compliance with the terms of this Section is not required to preserve the arbitrability or grievability of the grievance.

- d. Grievances must be filed with the UNION within twenty (20) working days after the event giving rise to the grievance. To comply, a Grievance Fact

Sheet must be filled out by the grievant and turned into a Union Principle Officer or a Grievance Committee Member. Within five (5) working days after receiving the grievance, the UNION shall notify the Fire Chief of the grievance and provides a Grievance Information Sheet to allow BOISE CITY to investigate the grievance for purposes of providing a timely response should the grievance be found meritorious and pursued by the UNION.

- e. UNION shall file its written findings for any grievance it supports with the Fire Chief no later than thirty (30) working days after receiving the Grievance Fact Sheet with the exception of grievances arising from terminations or suspensions without pay which are referenced in Section B. Termination, Demotion, and Suspension without Pay. The Fire Chief shall provide a written response to filed grievances no later than ten (10) working days after receiving the filed grievance. Within ten (10) working days after the UNION's receipt of the Fire Chief's written response, representatives of the UNION Grievance Committee and the Fire Chief shall meet in an attempt to resolve the grievance.
- f. If the grievance is not resolved as outlined in Subsection 3e. of this Section, and the UNION, with or without the complaining member, wishes to continue the grievance, the UNION may file a notice of arbitration with the Human Resources Director within thirty (30) working days after receipt of the Fire Chief's written response as outlined in Subsection 3e. of this Section, or if the Fire Chief failed to respond, within forty (40) working days of the UNION's filing of its written findings with the Fire Chief.

4. Arbitration Procedure

- a. At the time of filing the notice of arbitration, an arbitrator may be selected by mutual agreement by both BOISE CITY and the UNION. The arbitrator shall not be a member of the bargaining unit or an elected official or employee of BOISE CITY.
- b. If an arbitrator cannot be agreed upon, the parties shall, within twenty (20) working days of the filing of the notice of arbitration, send a joint written

request to the American Arbitration Association for a list of nine (9) arbitrators from which the parties shall select an arbitrator to hear and determine the grievance. The method of selection shall be by alternate striking of names on the list until only one (1) name remains. The one (1) remaining shall be the selected arbitrator. The party who strikes the first name shall be determined by the flip of a coin. Written notice of the appointment of the selected arbitrator shall be signed by both parties and mailed to said arbitrator within five (5) working days after selection.

- c. Upon the appointment of the selected arbitrator, as hereinabove provided, said arbitrator shall hold an arbitration hearing at the time and place selected by the arbitrator. The hearing shall be conducted pursuant to the provisions of Chapter 9, Title 7, Idaho Code and the terms and conditions of this AGREEMENT.
- d. While a grievant may be "made whole" by the arbitrator, any punitive award by the arbitrator shall be void and unenforceable. The award of the arbitrator shall be binding upon the parties hereto and the order may be entered upon the records of any court having jurisdiction, except that each party shall retain the right to appeal as provided in the provisions of Chapter 9, Title 7, Idaho Code.
- e. The arbitrator's costs shall be borne totally by the losing party, provided that in cases where the decision partially favors BOISE CITY and partially favors the UNION, the arbitrator's costs shall be borne in such proportion as shall be determined by the arbitrator.

5. Time Limits. The time limits set forth in Article 6. SPECIAL PROVISIONS; Section A. Grievances and Section B. Terminations, Demotions, and Suspensions without Pay, may be extended by written mutual consent of the Grievance Committee and BOISE CITY.

Section B. Termination, Demotion, and Suspension without Pay.

1. BOISE CITY and the UNION agree it is in the best interest of all parties to expedite grievances arising from disciplinary action which results in termination of employment or suspension without Composite Rate. Therefore, grievances that the UNION

Grievance Committee finds meritorious shall be filed in writing with the Fire Chief within thirty (30) calendar days after the date of the incident giving rise to the grievance. The Fire Chief will respond in writing within ten (10) calendar days of the date the grievance is filed.

2. Notwithstanding the Discipline General Order, when the Fire Chief terminates a member, such termination shall be effective upon the date the termination is issued. All other provisions of Section A. Grievances apply to these grievances.

Section C. Management Grievances.

1. Such grievances shall concern alleged violations of the AGREEMENT by the UNION rather than acts of a member arising out of his/her employment.
2. Written grievances at each step shall contain information as outlined in Article 6. SPECIAL PROVISIONS; Section A. Grievances; Subsection 3b.
3. The written response by the UNION at each step shall contain the information as outlined in Article 6. SPECIAL PROVISIONS; Section A. Grievances; Subsection 3b.
4. The procedure for adjudicating management grievances is as follows:
 - a. Such grievances shall be presented in writing to the Union President or designee by the Fire Chief within twenty (20) working days following the incident giving rise to the grievance, in an attempt to resolve the grievance. The Union President shall respond in writing to the Fire Chief within ten (10) working days after receipt of the grievance. Within ten (10) working days after the Fire Chief's receipt of the Union President's written response, the Fire Chief shall meet with the Union President or his designee in an attempt to resolve the grievance.
 - b. If the grievance is not resolved and the Fire Chief wishes to continue the grievance, BOISE CITY may file a notice of arbitration with the Union President or designee within thirty (30) working days after receipt of the Union President's written response in Article 6. SPECIAL PROVISIONS; Section C. Management Grievances; Subsection 4a., or if the Union President or designee failed to respond, within forty (40) working days of BOISE CITY's filing of its grievance with the Union President. The arbitration procedure for management grievances shall be

the same as for UNION grievances, as set forth in Article 6. SPECIAL PROVISIONS; Section A. Grievances; Subsection 4.

Section D. Voluntary Mediation.

Within ten (10) working days following either party's filing of a notice of arbitration, the parties will discuss whether it would be beneficial to submit the grievance to mediation. Mediation will be utilized only if both parties agree. The parties shall mutually select a mediator, whose fees will borne equally by BOISE CITY and the UNION. The arbitration process shall be temporarily suspended pending mediation. In the event mediation does not result in a mutually agreeable resolution of the grievance, the arbitration process shall be resumed the day after the filing by either party of a written notice of intent to resume arbitration.

Section E. Promotional Examinations.

<u>Position</u>	<u>Month</u>	<u>Year</u>
Battalion Chief	February	Even numbered
Captain Fire Suppression	March	Even numbered
Captain Training	March	Even numbered
Captain Fire Prevention	January	Odd numbered
Captain Logistics	January	Odd numbered
Senior Fire Fighter	March	Odd numbered

The eligibility list as certified by the Fire Chief for all tested positions shall be effective for two (2) years from the effective date of May 16 of the test year. For positions that BOISE CITY and the UNION agree will probably not develop vacancies, and thus do not require testing, the UNION may grant an exception allowing the waiver of promotional exams for those positions.

When a vacancy occurs and no valid promotional list exists, promotional examinations shall be conducted within ninety (90) days of such vacancy. The eligibility list will be valid for the balance of the original test period.

To be eligible to be tested for any promotion, a member must meet experience qualifications before the effective date of the eligibility list.

The Fire Chief shall make selection from the names certified. The Fire Chief shall make selection by considering the top three (3) names from the list for each promotion.

Example: There are three (3) positions to fill. The eligible list will consist of five (5) names. For the first position, candidates number one (#1), number two (#2), and number three (#3) will be considered. Assuming that candidate number one (#1) is selected for the first position, the Fire Chief will then consider candidates number two (#2), number three (#3), and number four (#4) for the second position. Assuming candidate number three (#3) is selected for the second position, the Fire Chief will then consider candidates number two (#2), number four (#4), number five (#5) for the third position.

Section F. Personnel Reductions.

A member may be separated without prejudice because of lack of funds or curtailment of work. Layoffs shall be made in inverse order of seniority. Members who have been separated due to a reduction in force have priority in re-employment if such priority does not conflict with State or Federal law.

Section G. Uniform and Other Equipment.

BOISE CITY agrees to provide, maintain, and clean all uniforms required to perform the duties of uniformed Fire Department of BOISE CITY personnel. BOISE CITY will determine uniform standards, regulations, and safety equipment requirements with the continued input from the Safety and Welfare Committee. All protective clothing and items required by BOISE CITY in the performance of members' respective duties shall be furnished by BOISE CITY. Bedding and towels will be provided and cleaned by BOISE CITY. All items provided under this Section by BOISE CITY shall remain the sole property of BOISE CITY. At any time the Fire Chief may discontinue the laundry service at an individual facility and provide washers and dryers. Crews will be expected, without additional compensation, to launder uniforms, bedding and towels. Laundering of bio-hazard contaminated items shall remain the responsibility of BOISE CITY.

Section H. Safety and Welfare Committee.

There shall be established and maintained a Safety and Welfare Committee whose recommendations shall be considered, discussed and answered at all times, in writing, for improvement of tools, equipment, health and safety conditions. This Committee shall consist of eight (8) members. Four (4) members will be appointed by the Fire Chief and four (4) members will be appointed by the UNION. The Committee Chairman, Vice Chairman and Secretary shall be elected from within the Committee. Committee

members shall be chosen every two (2) years. The Committee shall meet quarterly unless waived by mutual agreement of Committee members.

Section I. Educational Incentive Program (EIP).

1. EIP Applicability. The provisions of EIP shall apply to all qualifying full-time members covered by this AGREEMENT.
 - a. Excluded Ranks. Any rank for which the job description requires the attainment of a degree granted by an accredited educational institution as part of the minimum qualifications, shall be specifically excluded from eligibility for participation in the EIP. Should such requirements be duly adopted hereafter, said adoption shall not alter any then-existing members qualifying under the provisions of this EIP.
2. EIP - Qualifying Educational Program Areas:
 - a. A minimum of thirty-two (32) semester credits, from an accredited college or university, applicable toward an Associate's Degree in Fire Science, Fire Service Technology, or Fire Protection Administration, or any degree that is related to the fire service, with the approval of the Fire Chief as described in Subsection 2d.
 - b. An Associate Degree in a Fire Science, Fire Service Technology, or Fire Protection Administration, from an accredited college or university, forty (40) semester credits of which shall be in Fire Science related courses, with the approval of the Fire Chief as described in Subsection 2d.
 - c. A minimum of sixty-four (64) semester credits, from an accredited college or university, applicable toward a Bachelor's or Master's Degree in Fire Science, Fire Service Technology, or Fire Protection Administration, or any degree that is related to the fire service, with the approval of the Fire Chief as described in Subsection 2d.
 - d. A Bachelor's or Master's Degree from an accredited college or university in one (1) of the program areas listed in Appendix B. APPROVED EDUCATION INCENTIVE PROGRAM DEGREES. The Fire Chief may approve any other education program resulting in a Bachelor's Degree, after considering a request by an EIP applicant, which fulfills the intent of the EIP

and the interests of the Fire Department of BOISE CITY. Once an unspecified degree is accepted by the Fire Chief for EIP, that degree shall become a part of Appendix B. APPROVED EDUCATION INCENTIVE PROGRAM DEGREES, provided the Fire Chief determines that the degree is consistent with a plan of fire operations and is not limited to specified duties which do not have department-wide application.

3. EIP. Incentive Pay Levels; Accreditation of Credits, and Required Grade Point Average. There shall be granted to members fulfilling the requirements of the EIP the following additional pay, upon attainment of the educational levels set forth below, over and above the Base Rate set forth in Appendix A. PAY SCHEDULES of this AGREEMENT.

- a. Thirty-two (32) semester credits applicable toward any qualifying degree as set forth hereinabove shall result in an EIP payment of eleven dollars and fifty-four cents (\$11.54) per bi-weekly pay period.
- b. Associates Degree or sixty-four (64) credits applicable toward any qualifying degree as set forth hereinabove shall result in an EIP payment of twenty-three dollars and eight cents (\$23.08) per bi-weekly pay period.
- c. Bachelor's Degree as set forth hereinabove shall result in an EIP payment of thirty-four dollars and sixty-two cents (\$34.62) per bi-weekly period.
- d. Master's Degree as set forth hereinabove shall result in an EIP payment of forty-six dollars and sixteen cents (\$46.16) per bi-weekly pay period.

Subject to the exclusions set forth below, all said degrees or equivalent semester credits shall be deemed qualifying if granted by an educational institution accredited by any Regional Accreditation Association or Specialized Accreditation Agency. The Fire Chief, however, in his sole discretion, may qualify equivalent semester credits granted eligible by an educational institution not otherwise accredited by a Regional Accreditation Association or a Specialized Accreditation Agency upon finding that the credits so granted fulfill the intent of the EIP and are of significant benefit to the Fire Department of BOISE CITY. In all cases, eligible members shall have attained a minimum equivalent grade point average of "C" in any qualifying credits earned.

4. EIP - Administration. The following provisions shall govern the administration of the EIP:
- a. EIP Initial Eligibility Dates. Members qualifying for payment of EIP, as set forth above, shall become initially eligible for said payments on the first day of the bi-weekly pay period following the eligibility approval by the Fire Chief. Such approval shall not be withheld by the Fire Chief if such members have fulfilled all of the certification requirements set forth herein.
 - b. Certification. Certification for initial eligibility shall be submitted to the Fire Chief on a form provided by the Fire Chief. Certification for initial eligibility may be submitted at any time during the year. Each member shall be solely responsible for fulfilling the certification requirements relating to eligibility as set forth herein and BOISE CITY shall have no obligation or responsibility with respect thereto.
5. City Paid Training Courses. University, college, or other credits earned by a member from a training or educational program, which are paid for by BOISE CITY, shall not be eligible for use in the EIP.

Section J. Certification.

Members assigned to Operations and Training will be qualified as an Idaho Emergency Medical Technician (EMT). Members assigned to Logistics will be qualified as an Emergency Vehicle Technician (EVT). Members assigned to Fire Prevention will be qualified as a Fire Inspector I as issued by the International Code Council. Members transferring to an assignment in Logistics or Fire Prevention without the required certification will be allowed two (2) years to earn the necessary certification.

BOISE CITY and the UNION agree that job-related certification is a condition of employment and a continuing program. BOISE CITY will provide all the training classes necessary for certification or recertification during the member's regular working hours.

Section K. Mediation and Fact Finding.

The Parties agree that they will jointly meet with representatives of the Idaho Department of Labor to resolve and clarify ambiguities concerning logistical matters in Chapter 18, Title 44, Idaho Code. Of particular concern is the manner in which the neutral member of the fact finding commission is to be selected. The parties have agreed to reach

a consensus consistent with the existing statute by December 1, 2023. At that time, the newly agreed upon language, if any, will be drafted into an MOU (Memorandum of Understanding) for placement into this contract. This paragraph shall sunset upon on that date unless there is an agreement to mutually extend this paragraph.

On or after the 30th day following commencement of negotiations, either party may initiate mediation. In the event the parties are unable to agree upon a mediator, the mediator shall be assigned by the Federal Mediation and Conciliation Service, or another mutually agreeable agency. Except as explicitly provided herein, the mediation option shall not alter, hinder or delay any rights or obligations of the parties pursuant to the provisions of Chapter 18, Title 44, Idaho Code. If, after thirty (30) days or two (2) mediation sessions, whichever comes later, the parties have not reached agreement on a successor Collective Labor Agreement, the parties may initiate the fact finding process pursuant to Idaho Code §§44-1805 and -1806.

The remaining unresolved issues following mediation shall be submitted to fact finding. In the absence of mediation, the issues submitted to fact finding shall be those unresolved issues as of the completion of the last bargaining session of the negotiations. No later than twenty-one (21) days prior to the fact finding hearing, each party will present to the fact finding commission and to the other party, its proposal on each unresolved issue.

Except by mutual agreement, only issues relating to wages, rates of pay, working conditions and all other terms and conditions of employment as prescribed by Idaho Code §44-1802 may be submitted to the fact finding commission. The decision of the commission will be a recommendation with respect to all issues, and the commission is encouraged to suggest possible compromises to the parties as well as by making a recommendation by a majority vote, selecting one (1) of the two (2) proposals submitted by the parties on each issue.

BOISE CITY and the UNION agree that the written determination of the majority of the fact finding commission regarding any and all unresolved issues submitted to them pursuant to Idaho Code §44-1805 shall be a recommendation upon BOISE CITY and the UNION.

Each party shall pay for its own expenses and representatives in the mediation and fact finding processes. Fees of the mediator and the third fact finder will be shared equally by the parties.

Section L. Physical Fitness Program.

The UNION and BOISE CITY agree that a program of physical fitness and fitness standards is important to the health and productivity of the members and to safety and efficiency in performing Fire Fighter duties.

Both parties therefore agree to jointly develop and implement a validated physical fitness program intended to enhance the health, fitness and safety of Fire Fighters and to improve work efficiency in protecting the life and property of the citizens. Any such program implemented shall be done through the General Orders Process.

Section M. Bi-weekly Payroll.

Composite Pay shall be converted to an hourly rate paid equally over twenty-six (26) pay periods. All "deductions" will be taken over twenty-four (24) pay periods except taxes, PERSI, deferred compensation, and in accordance with the garnishments and/or levies.

Section N. Union Pool.

Union pool assessments are initiated by an Executive Officer of IAFF Local 149. The Officer shall submit a request in writing for an assessment of two (2) vacation hours for each member (non-union members excluded) in accordance with the bylaws of the UNION. The assessment will be processed during one of the next two bi-weekly payrolls, depending upon when the request is received in the payroll cycle. The Executive Officer will notify the members of such assessment. Union pool assessments will typically be processed for all members at the same time. Members with no available vacation hours at the time of assessment will be assessed in the first payroll cycle following their next accrual.

Union pool requests, for hours provided to a member, are initiated by the Secretary-Treasurer of IAFF Local 149. The Secretary-Treasurer shall submit a request in writing which includes the member's name, date(s) the hours were used, and the number of hours to be provided to the member. The request will be processed during one

of the next two bi-weekly payrolls, depending upon when the request is received in the payroll cycle.

Special assessments for benevolent purposes shall be approved by the membership at a regularly scheduled UNION meeting in accordance with the bylaws of the UNION. Following membership approval, an Executive Officer of IAFF Local 149 shall submit a request in writing for the hours to be assessed and a subsequent request with the beneficiary member's name and the number of hours to be provided. In no instance shall the Union pool be used to circumvent the utilization of a member's benefits, including, but not limited to, vacation leave, sick leave, and authorized leave without pay. The request will be processed during one of the next two bi-weekly payrolls, depending upon when the request is received in the payroll cycle.

Section O. NFPA 1710 Compliance.

BOISE CITY agrees to maintain its commitment to bring the Fire Department closer to NFPA 1710 compliance. However, this AGREEMENT is not intended to bind BOISE CITY to expend funds in any manner.

(End of Agreement - Signatures to Follow)

**COLLECTIVE LABOR AGREEMENT
BETWEEN CITY OF BOISE AND IAFF LOCAL 149
SIGNATURE PAGE**

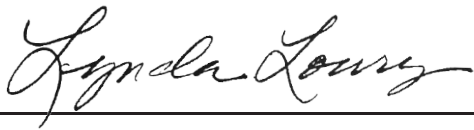
DATED this 17th day of April, 2023.

CITY OF BOISE CITY,

By 
LAUREN MCLEAN, MAYOR 4/18/2023

INTERNATIONAL ASSOCIATION OF
FIRE FIGHTERS LOCAL 149,

By 
JASON SHUEY, PRESIDENT

ATTEST: 
CITY CLERK Lynda Lowry 4/18/2023



COLLECTIVE LABOR AGREEMENT
BETWEEN CITY OF BOISE AND IAFF LOCAL 149
APPENDIX A. PAY SCHEDULES

Schedule 1. Base Pay (Bi-Weekly)

Rank	10/1/2022 (Bi-Weekly Equiv.)	10/1/2023 (Bi-Weekly Equiv.)	10/1/2024 (Bi-Weekly Equiv.)	10/1/2025 (Bi-Weekly Equiv.)
Battalion Chief	\$4,368.47	\$4,674.26	\$4,837.86	\$5,007.19
Sr. Captain (Logistics/Training/Prevention)	\$4,086.24	\$4,372.27	\$4,525.30	\$4,683.69
Captain – Logistics	\$3,951.76	\$4,228.39	\$4,376.38	\$4,529.55
Captain – Training	\$3,951.76	\$4,228.39	\$4,376.38	\$4,529.55
Captain – Prevention	\$3,951.76	\$4,228.39	\$4,376.38	\$4,529.55
Captain – Suppression	\$3,951.76	\$4,228.39	\$4,376.38	\$4,529.55
Senior Fire Fighter	\$3,539.69	\$3,787.47	\$3,920.03	\$4,057.23
Fire Fighter Class III	\$3,338.26	\$3,571.93	\$3,696.95	\$3,826.35
Fire Fighter Class II	\$3,041.48	\$3,254.39	\$3,368.29	\$3,486.18
Fire Fighter Class I	\$2,743.21	\$2,935.24	\$3,037.97	\$3,144.30
Fire Fighter Probationary	\$2,436.63	\$2,607.19	\$2,698.45	\$2,792.89

1. Increases in Base Rate: Upon hiring, a probationary Fire Fighter shall receive the Fire Fighter Probationary Base Rate. If the Fire Fighter successfully completes a one (1) year probationary period then the Fire Fighter shall receive the Fire Fighter Class I Base Rate as of the anniversary date of hire. The Fire Fighter Class II Base Rate shall be received effective as of the second anniversary date of hire. All Fire Fighters hired on or after October 1, 2004, must successfully complete the Working out of Class (WOC) Driver Program or the Driver Academy as a pre-requisite to receiving the Fire Fighter Class III Base Rate. BOISE CITY shall provide the Driver Academy and upon successful completion, the Fire Fighter Class III Base Rate will be effective upon

successful completion of the Driver Academy, in the bi-weekly pay period of completion.

2. Senior Captain (Logistics, Prevention, Training) definition: A Captain Logistics/Prevention/Training who has served for seven (7) years in their respective Division or who has served for seven (7) years as a Captain Suppression or who has served for seven (7) years in a combination of Captain Suppression and current Division.
3. Specialty Teams. A Specialty Team performs a level of service beyond EMS and fire suppression to the citizens of Boise. The determination to provide a level of service is a management right. Should BOISE CITY determine it will eliminate a Specialty Team, the Specialty Team members will not be required to perform on a Specialty Team and Specialty Team Pay will terminate at the end of the bi-week that the Specialty Team is eliminated. Eligibility to receive appointment to a Specialty Team shall include:
 - a. Longevity – Completion of initial hire probationary period, and
 - b. Request to Join – Written or email request to Special Operations Division Chief (waived if draft required), and
 - c. May not exceed two (2) Specialty Teams, and
 - d. Competitive test and/or minimum skills test at the discretion of the Special Operations Division Chief.

Specialty Team Pay will begin the first day of the bi-week following appointment. Specialty Team Longevity Pay will begin on the first day of the bi-week in which the appointment anniversary date falls. Specialty Team Longevity Pay must be for continuous service, and if there is a break in service, previous time will not count. Members may be on a maximum of two (2) Specialty Teams, provided it is approved by the Special Operations Division Chief.

When a member is promoted to Battalion Chief or is reassigned to a Forty (40) Hour Workweek position, the Special Operations Division Chief shall determine whether that member is eligible to remain on or join a Specialty Team(s).

Forty (40) Hour Workweek Members who are members of a Specialty Team shall not count toward daily minimum staffing numbers. Battalion Chiefs may count toward the daily minimum staffing numbers, at the discretion of the Special Operations Division

Chief. Daily minimum staffing is five (5) members per Team. The Special Operations Division Chief will determine the optimum minimum and maximum membership number for each Specialty Team in consideration of response, contracts, agreements and Memorandums of Understanding.

Members will receive appointment to a Specialty Team by the Special Operations Division Chief. All appointed members must sign an agreement for a minimum of two (2) years of service. Specialty Team members must meet and maintain certification/ training in the specialty as determined by the Special Operations Division Chief.

In the event that a Specialty Team does not have adequate staffing as determined by the Special Operations Division Chief or no eligible candidates have applied for the Specialty Team, the Special Operations Division Chief will then “draft.” The Special Operations Division Chief may go above the most junior eligible member if that member has been involuntarily drafted previously in their current rank.

In the event a Specialty Team member resigns or is removed from a Specialty Team for failure to meet competencies, that member will not be allowed to re-apply for that Specialty Team for one (1) year from the date of removal.

A member requesting resignation from a Specialty Team will be released when a replacement member is appointed, or at the discretion of the Special Operations Division Chief.

Team members also must maintain levels of proficiency within their job description.

- 1) Hazardous Materials Team. Operations shall be conducted only when applicable Occupational Safety and Health Association (OSHA), Environmental Protection Agency (EPA), and Code of Federal Regulations (CFR) requirements for hazardous material response are met. In addition to all other wage considerations, each member of the Hazardous Materials Team shall receive pay in accordance with Appendix A. PAY SCHEDULES; Schedule 2. Specialty Team Pay Categories. Member assignments for the Hazardous Materials Team shall be as follows for each shift:
 - a. One (1) Captain assigned to the HazMat Station
 - b. One (1) SFF assigned to the HazMat Station
 - c. One (1) FF assigned to the HazMat Station

- d. Additional members – Open assignment
- 2) Dive/Swift Water Rescue Team. In addition to all other wage considerations, each member of the Dive/Swift Water Rescue Team shall receive pay in accordance with Appendix A. PAY SCHEDULES; Schedule 2. Specialty Team Pay Categories. Member assignments for the Dive/ Swift Water Rescue Team shall be as follows for each shift:
- a. One (1) Captain assigned to the Dive Station
 - b. One (1) SFF assigned to the Dive Station
 - c. One (1) FF assigned to the Dive Station
 - d. Additional members – Open assignment
- 3) Technical Rescue Team. In addition to all other wage considerations, each member of the Technical Rescue Team shall receive pay in accordance with Appendix A. PAY SCHEDULES; Schedule 2. Specialty Team Pay Categories. There shall be a minimum of three (3) Technical Rescue Team members on duty at the Technical Rescue station daily, and one (1) of the three (3) Technical Rescue Team members shall be a Technical Rescue Team Captain. All members assigned to the Technical Rescue Team engine shall be members of the Technical Rescue Team.
- 4) Aircraft Rescue Fire Fighting (ARFF). In addition to all other wage considerations, each member of the ARFF Team, shall receive pay in accordance with Appendix A. PAY SCHEDULES; Schedule 2. Specialty Team Pay Categories. Members assigned to the ARFF station may be allowed to remain on a second Specialty Team or accept appointment to a second Specialty Team. All members appointed to Specialty Teams who are assigned to the ARFF station, will count towards daily minimum Team staffing for ARFF, Technical Rescue and Hazardous Materials Teams, as applicable. Member assignments for ARFF shall be as follows for each shift:
- a. One (1) Captain assigned to the ARFF station
 - b. Two (2) SFF assigned to the ARFF station
 - c. Two (2) Fire Fighters assigned to the ARFF station
 - d. Additional members – open assignment

4. Paramedic-Fire Fighters.

- a. Definition: Members who are certified by the State of Idaho as an EMT-Paramedic; approved by the Fire Department of BOISE CITY and Ada County/City Emergency Services System (ACCESS) Medical Director to function as a Paramedic, and are assigned by the Operations/EMS Division Chief to serve as a Paramedic-Fire Fighter.
- b. Condition of Employment: Candidates for Paramedic-Fire Fighter positions with the Fire Department of BOISE CITY shall serve as a Paramedic for as long as the Operations/EMS Division Chief deems that it is in the best interest of the organization. A Paramedic-Fire Fighter may submit a request to revert back to EMT-B status. The Paramedic-Fire Fighter may be allowed to revert back to EMT-B at the full discretion of the Operations/EMS Division Chief.
- c. Training: BOISE CITY will provide or make available the training classes necessary for re-licensure. BOISE CITY shall not be restricted from scheduling such training by any limitations of Article 5. HOURS OF WORK; Section F. Work Duties. Regular Duty Trades by Paramedic-Fire Fighters that will negatively impact the staffing of the designated engine company or will cause a Paramedic-Fire Fighter to miss scheduled required paramedic Continuing Education Units (CEUs) must be approved by the Battalion Chief.
- d. Overtime: Staffing requirements for Paramedic Engine Companies shall take precedence in the distribution of overtime over the contractual reference to distributing overtime as equally as practicable among members of the same rank.
- e. Specialty Teams: Members assigned as Paramedic-Fire Fighters may only participate on one (1) Specialty Team, unless otherwise approved by the Fire Chief. Paramedic-Fire Fighters not participating on a Specialty Team will be eligible to be drafted to a Specialty Team.
- f. Paramedic-Fire Fighter Certification Pay: In addition to all other wage considerations, each member so certified, shall receive a sum equal to ten percent (10%) of their Base Rate per bi-weekly pay period. Certification Pay will begin the first day of the bi-weekly pay period when the department

program preceptorship begins. If the member is unsuccessful in meeting all the requirements and is released from the program, the Certification Pay will terminate at the end of the bi-weekly pay period.

5. SCBA Technician. The hourly rate for the part-time SCBA Technician shall be equal to eighty percent (80%) of the hourly rate for Captain Logistics. The individual filling the SCBA Technician position shall be a “member” for purposes of the CLA, no other CLA Articles shall apply to this position.

Schedule 2. Specialty Team Pay Categories.

Specialty Team Pay: All Specialty Team Members shall receive ninety-two dollars and thirty-one cents (\$92.31) per bi-weekly pay period.

Specialty Team Longevity Pay: In addition, years of service longevity increments will be paid as follows:

<u>Years of Service in Specialty</u>	<u>Bi-weekly Longevity Pay</u>
5	\$ 11.54
10	\$ 23.08
15	\$ 34.62
20	\$ 46.16

COLLECTIVE LABOR AGREEMENT
BETWEEN CITY OF BOISE AND IAFF LOCAL 149
APPENDIX B. APPROVED EDUCATION INCENTIVE PROGRAM DEGREES

Accounting
Applied Mathematics
Applied Science
Aviation
Behavioral Science
Biology
Biomedical Science
Business Administration
Business Administration/Management
Business Management
Communication
Construction Management
Criminal Justice
Criminal Justice Administration
Diesel Technology
Education (Physical Education)
Electronics
Elementary Education
Engineering
Finance
Fine Arts
Fire Protection Technology
Fire Science
Fire Science Administration
Fire Science Technology
Fire Service Technology
Fire Service Training
Fire Suppression Technology

Forestry
General Business
General Studies
Geology
Geology/Business
Health and Human Performance
Health Science Studies
History
History/Social Studies Education
Industrial Business
Information Science
Kinesiology
Management & Computer Information Science
Management & Organization
Mental Health Counseling
Natural Resources
Nursing
Paramedic
Parks & Recreation Management
Photographic Science
Physical Education
Physics/Mathematics
Political Science
Pre Law/Real Estate
Pre Medical/Dental/Zoology
Psychology
Recreation
Social Science/History
Sports Management
Theater Arts (Video Production)

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